

EXHIBIT
C

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ARTHUR WHITE,

Plaintiffs,

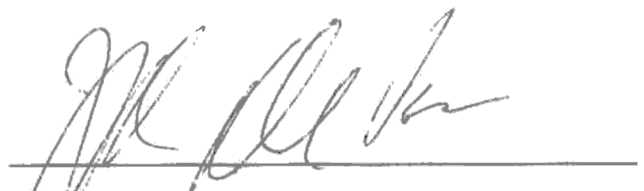
-against-

THE CITY OF NEW YORK, P.O. WARREN LOPEZ OF
THE 48TH PCT., SHIELD #29434, TAX REG #955091,
P.O. HAROLDY CABREJA OF THE 48TH PCT., SHIELD
#1747, TAX REG #953715, NYPD POLICE OFFICERS
ON ARREST #B14642829 WHOSE NAMES ARE NOT
KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I,Defendants.
-----XIndex No. Purchased
_____Plaintiff designates Bronx
County as the place of trialThe basis of the venue is where
the tort arose and where
plaintiff(s) reside**SUMMONS**

Plaintiff resides at

Arthur White
760 East 183rd Street
Bronx, NY 10460**TO THE ABOVE NAMED DEFENDANT(S):**

You ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
August 12, 2015**JOHN R. DEPAOLA & ASSOCIATES PLLC**
Attorneys for Plaintiffs
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000RECEIVED
15 AUG 23 11:00
CLERK OF COURT
COUNTY OF BRONX

Defendants' Addresses:

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

P.O. Warren Lopez of the 48th PCT.

Shield #29434, Tax Reg #955091

450 Cross Bronx Expressway

Bronx, NY 10457

(718) 299-3900

P.O. Haroldy Cabreja of the 48th PCT.

Shield #1747, Tax Reg #953715

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Bronx, NY 10457

(718) 299-3900

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VERIFIED COMPLAINT

ARTHUR WHITE, by their attorneys, JOHN R. DEPAOLA & ASSOCIATES
PLLC, respectfully alleges as follows:AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **ARTHUR WHITE** was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the September 12, 2014 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer(s) designated to receive such process personally,

15 AUG 13 PM 3:00
COUNTY CLERK
BRONX COUNTY

RECEIVED

which Notice of Claim advised the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff **ARTHUR WHITE** has complied with the request of the municipal Defendants' for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **P.O. WARREN LOPEZ OF THE 48TH PCT., SHIELD #29434, TAX REG #955091, P.O. HAROLDY CABREJA OF THE 48th PCT., SHIELD #1747, TAX REG #953715, NYPD POLICE OFFICERS ON ARREST #B14642829 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I**, were and are police officers of the Defendant **CITY OF NEW YORK**, and at all times herein were acting in such capacity as its agents, servants and employees.
7. On or about June 17, 2014, at approximately 12:00 A.M. in the vicinity of 180th Street and Boston Road, County of Bronx, State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **ARTHUR WHITE**, in an excessive manner about his person, causing him physical pain and mental suffering. At no

time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about June 17, 2014, at approximately 12:00 A.M. in the vicinity of 180th Street and Boston Road, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **ARTHUR WHITE** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about June 17, 2014, at approximately 12:00 A.M. in the vicinity of 180th Street and Boston Road, County of Bronx, State of New York, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully *arrested* the Plaintiff, restrained him and his

liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2014BX032232. The Plaintiff was thereafter held in custody over the course of approximately four (4) days or approximately eighty-nine (89) hours until he was released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about June 17, 2014, at approximately 12:00 A.M. in the vicinity of 180th Street and Boston Road, County of Bronx, State of New York, the Defendants jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully *imprisoned* the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in one of the City of New York's Correctional Facilities. The Plaintiff was thereafter held in custody over the course of approximately four (4) days or approximately eighty-nine (89) hours before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Defendants **P.O. WARREN LOPEZ OF THE 48TH PCT., SHIELD #29434, TAX REG #955091, P.O. HAROLDY CABREJA OF THE 48TH PCT., SHIELD #1747, TAX REG #953715, NYPD POLICE OFFICERS ON ARREST #B14642829 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
16. At all times mentioned herein, said police officers were acting under color of law, to wit, the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.
17. Plaintiff **ARTHUR WHITE** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to Article 42, Section 1983 of the United States Code, 42 U.S.C. §1983, and Article 42, Section 1988 of the United States Code, 42 U.S.C. §1988.
18. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
19. On or about June 17, 2014, the Defendants, armed police, while effectuating the seizure of the Plaintiff **ARTHUR WHITE**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the

arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and unlawfully imprisoned without the Defendants possessing probable cause to do so.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. freedom from assault to his person;
 - b. freedom from battery to his person;
 - c. freedom from illegal search and seizure;
 - d. freedom from false arrest;
 - e. freedom from the use of excessive force during the arrest process;
 - f. freedom from unlawful imprisonment; and
 - g. freedom from loss of his liberty.
21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
22. The direct and proximate result of the Defendants' actions is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
25. Defendant **CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
26. Defendant **CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
- a. probable cause must be present before an individual such as the Plaintiff herein can be arrested;
 - b. excessive force cannot be used against an individual who does not physically resist arrest; and

c. an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

27. The foregoing acts, omissions and systemic failures are customs and policies of the Defendant **CITY OF NEW YORK**, which caused the police officers to falsely arrest and imprison, search and seize illegally, commit an assault/battery to his person, and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.
29. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Defendants **P.O. WARREN LOPEZ OF THE 48TH PCT., SHIELD #29434, TAX REG #955091, P.O. HAROLDY CABREJA OF THE 48TH PCT., SHIELD #1747, TAX REG #953715, NYPD POLICE OFFICERS ON ARREST #B14642829 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so

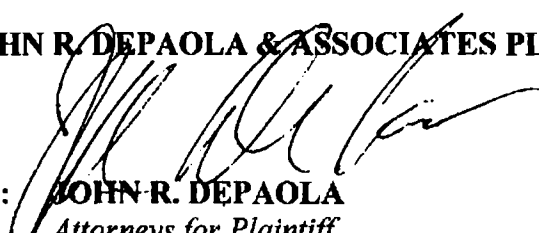
that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
August 12, 2015

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: JOHN R. DEPAOLA
Attorneys for Plaintiff
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-4000

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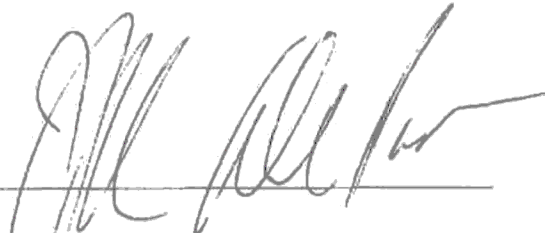
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VERIFICATION

I, **JOHN R. DEPAOLA**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **JOHN R. DEPAOLA & ASSOCIATES PLLC**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
August 12, 2015



JOHN R. DEPAOLA